



## FIA FORMULA E WORLD CHAMPIONSHIP ROUND 9&10 - MONACO E-PRIX 14 - 17 MAY 2026

### Decision no. 42

**From:** The Stewards  
**To:** MAHINDRA RACING

**Date:** 8 June 2026  
**Time:** 08:55

The Stewards have received a petition for review in writing from MAHINDRA RACING, requesting the Stewards to review, in accordance with Article 14 of the FIA International Sporting Code, Decision No. 30, issued during Round 10 of the 2026 Monaco E-Prix of the 2025/2026 FIA Formula E World Championship.

Decision No. 30 concerned Car 48, Driver Edoardo Mortara, and a breach of Article 16.1 d) of the 2025/2026 FIA Formula E World Championship Sporting Regulations, for causing a collision with Car 13, Driver António Félix da Costa, at the Turn 10-11 Chicane. The original Decision imposed a 10 second time penalty and 1 penalty point.

The Petition was submitted in writing by MAHINDRA RACING by e-mail on Thursday, 21 May 2026 at 18:38 CET.

The Stewards examined the Petition for Review and summoned and heard the Team Representative of MAHINDRA RACING, Ms Elisa Sacchini, as well as the Team Representative of JAGUAR TCS RACING, Mr Josep Roca Serna, and the Driver of Car 13, Mr António Félix da Costa, during an online hearing held on 27 May 2026 at 16:00 CET. The Stewards also heard the Performance Director of MAHINDRA RACING, Mr Jérémy Colançon, who attended the hearing. The Driver of Car 48, Mr Edoardo Mortara, who had been given the opportunity to attend the hearing, elected not to do so. The Stewards determine the following.

#### **DECISION 1 - FORMAL ADMISSIBILITY OF THE PETITION**

The Stewards first considered whether the Petition satisfies the formal requirements of Article 14 of the FIA International Sporting Code.

The Stewards note that MAHINDRA RACING is the Competitor of Car 48 and is therefore a party directly concerned by Decision No. 30.

The Stewards further note that the Petition concerns a single decision, namely Decision No. 30.

Pursuant to Article 14.4.1 of the FIA International Sporting Code, a Petition for Review must be lodged no later than 96 hours after the end of the Competition concerned. The final classification of the Monaco E-Prix was issued on Sunday, 17 May 2026 at 19:32 CET and the applicable deadline therefore expired on Thursday, 21 May 2026 at 19:32 CET. The Petition was submitted on Thursday, 21 May 2026 at 18:38 CET and was therefore submitted within the applicable deadline.

The Stewards also note that the Petition was submitted in writing and identified the alleged new elements relied upon by MAHINDRA RACING, which concern the proportionality and consistency of the penalty imposed in Decision No. 30, including by reference to other decisions issued during the Monaco E-Prix and at a previous round of the Championship.

The required deposit pursuant to Article 14.4.3 of the FIA International Sporting Code was received, as confirmed by the Stewards' Secretary.

The Stewards therefore determine that the formal requirements under Article 14 of the FIA International Sporting Code have been satisfied.

**Decision 1: The Petition for Review is admissible.**

This Decision 1 is subject to appeal in accordance with the applicable provisions of the FIA International Sporting Code.

**DECISION 2 - EXISTENCE OF A SIGNIFICANT AND RELEVANT NEW ELEMENT WHICH WAS UNAVAILABLE**

Having determined that the Petition is formally admissible, the Stewards then considered whether the Petition identifies a significant and relevant new element which was unavailable to the Stewards at the time Decision No. 30 was taken, within the meaning of Article 14.1.1 of the FIA International Sporting Code. For the purposes of this assessment, the Stewards consider an element to be significant if it would have been capable of materially affecting the original Decision, including both the finding of breach and the penalty imposed.

As Decision No. 30 was an in-race decision and no hearing was conducted before that Decision was taken, the relevant test under Article 14.1.1 of the FIA International Sporting Code is whether the alleged new element was unavailable to the Stewards at the time the original Decision was taken.

In Decision No. 30, the Stewards found that Car 48 caused a collision with Car 13 at the Turn 10-11 Chicane. Car 48 was following Car 13 and made contact with the rear of Car 13, as a result of which Car 13 spun. The Stewards determined that Car 48 failed to avoid contact with the car ahead and was wholly responsible for the collision. Accordingly, the Stewards imposed a 10 second time penalty and 1 penalty point.

During the hearing, MAHINDRA RACING stated that it did not dispute that a penalty was warranted for the incident. The Petition was directed at the level of the penalty imposed, MAHINDRA RACING submitting that a 5 second time penalty would have been more appropriate than the 10 second time penalty imposed in Decision No. 30.

MAHINDRA RACING submitted that the level of penalty imposed in Decision No. 30 was not consistent with other decisions issued during the Monaco E-Prix weekend, including decisions issued after Decision No. 30, and also referred to an incident from a previous round of the Championship. MAHINDRA RACING submitted that these comparisons showed that the penalty imposed in Decision No. 30 was too severe.

The Stewards considered the comparisons with other decisions and incidents referred to by MAHINDRA RACING. Some of the Monaco E-Prix decisions referred to by MAHINDRA RACING were issued after Decision No. 30 and therefore did not exist at the time Decision No. 30 was taken. However, the Stewards do not consider those subsequent decisions to constitute a relevant or significant element for the purposes of Article 14.1.1 of the FIA International Sporting Code. The Stewards also note that the incident from a previous round of the Championship referred to by MAHINDRA RACING pre-dated Decision No. 30 and therefore cannot be considered a new element. In any event, all of the comparisons relied upon by MAHINDRA RACING concern different incidents, involving different cars, different circumstances, different contact dynamics and different overall context. They do not provide any material additional element in relation to the specific incident between Car 48 and Car 13.

The Stewards also considered MAHINDRA RACING's submission concerning the later evolution of Car 13's race after the incident. The Stewards accept that the eventual race outcome of Car 13 was not known at the time Decision No. 30 was taken and may therefore be regarded as new. However, the Stewards do not consider it to be significant within the meaning of Article 14.1.1 of the FIA International Sporting Code. Decision No. 30 had to be taken on the basis of the incident and its impact as they were known and could reasonably be assessed at the time. The later recovery of Car 13 in the race cannot retrospectively alter the nature and impact of the collision as assessed at the time of the original Decision.

The Stewards do not consider that the material relied upon by MAHINDRA RACING materially affects the basis upon which Decision No. 30 was taken. That basis was that Car 48 was wholly responsible for causing a collision with Car 13, which resulted in Car 13 spinning. The material presented by MAHINDRA RACING does not establish any significant and relevant new element which would have been capable of materially affecting either the finding of breach or the penalty imposed.

The Stewards further note that the material relied upon by MAHINDRA RACING does not identify any new factual element relating to the incident itself between Car 48 and Car 13. Rather, the Petition relies on a subsequent comparative assessment of other decisions involving different incidents, in order to challenge the proportionality of the penalty imposed in Decision No. 30. Such a comparison does not, in itself, constitute a significant and relevant new element within the meaning of Article 14.1.1 of the FIA International Sporting Code. Each incident must be assessed on its own facts, circumstances and dynamics. The fact that a Competitor, after the race and with the benefit of further time for analysis, identifies other decisions which it considers comparable does not convert those decisions into a new, relevant, significant

and unavailable element capable of triggering a review of an in-race decision. The Right of Review procedure is not intended to provide a general mechanism to reargue an in-race decision, or to recalibrate the level of penalty imposed.

The Stewards therefore determine that none of the elements presented by MAHINDRA RACING, whether considered individually or collectively, satisfies all the cumulative requirements of Article 14.1.1 of the FIA International Sporting Code. The Petition principally seeks a reassessment of the proportionality of the penalty imposed in Decision No. 30, rather than identifying a significant and relevant new element which was unavailable to the Stewards at the time the original Decision was taken. None of the elements relied upon by MAHINDRA RACING materially affects the factual basis of Decision No. 30 or would have been capable of materially affecting the penalty imposed. Accordingly, no significant and relevant new element which was unavailable to the Stewards at the time of Decision No. 30 has been established.

**Decision 2: There is no significant and relevant new element which was unavailable to the Stewards at the time Decision No. 30 was taken. Accordingly, the Stewards reject the Petition for Review. As the Petition for Review is rejected, the deposit is retained.**

Competitors are reminded that, in accordance with Article 14.3 of the FIA International Sporting Code, Decision 2 as to whether or not a significant and relevant new element exists is not subject to appeal.

Mathieu Remmerie  
Chairman of the Panel

Michael Schwägerl  
International Steward

Jean-François Calmes  
National Steward